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Case Number: 25STCV31513 Hearing Date: June 30, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: June 30, 2026

Case Name: Blankwoods LLC v. Garrison,
et al.

Case

No.: 25STCV31513

Matter: Motion for Preliminary Injunction

Moving

Party: Plaintiff Blankwoods

LLC

Responding Party: Defendants Michael Garrison, Zachary
Powers, Mint Management LLC, and Crafton Select LLC

Tentative

Ruling: Plaintiff

Blankwoods LLC's motion for preliminary injunction is denied.

Plaintiff Blankwoods LLC

("Plaintiff"), a Florida Limited Liability Company, filed this

action

against Defendants Michael Garrison, Zachary Powers, Mint Management LLC, Crafton

Select

LLC (collectively "Defendants"), and Does 1 through 20. The Complaint alleges eight causes of action for: (1) breach of contract; (2) fraud; (3) trademark infringement; (4) unfair business practices per Business and Professions Code section 1700, et seq.; (5) conversion; (6) civil theft per Penal Code section 496; (7) internal interference with prospective economic advantage; and (8) constructive trust and restitution.

Plaintiff

moves for a preliminary injunction enjoining and restraining Defendants from manufacturing, selling, distributing, transferring, or promoting any product bearing the word mark Quickies. Defendants oppose.

Legal Standard

The

standards governing a preliminary injunction are well known. "[A] court will deny a preliminary injunction unless there is a reasonable probability that the plaintiff will be successful on the merits, but the granting of a preliminary injunction does not amount to an adjudication of the merits." (Beehan v. Lido Isle Community Assn. (1977) 70 Cal.App.3d 858, 866 (Beehan).) "The function of a preliminary injunction is the preservation of the status quo until a final determination of the merits." (Ibid.)

"Trial

courts traditionally consider and weigh two factors in determining whether to issue a preliminary injunction. They are (1) how likely it is that the moving party will prevail on the merits, and (2) the relative harm the parties will suffer in the interim due to the issuance or nonissuance of the injunction." (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) "[T]he greater the ... showing on one, the less must be shown on the other to support an injunction." (Ibid. [quoting Butt v. State of California, (1992) 4 Cal.4th 668, 678].) The burden of proof is on the moving party "to show all elements necessary to support issuance of a preliminary injunction." (O'Connell v. Superior Court (2006) 141

Cal.App.4th 1452, 1481 (O'Connell).)

Preliminary injunctive relief

requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. (See e.g., *Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 150.) “The scope of available preliminary relief is necessarily limited by the scope of the relief likely to be obtained at trial on the merits.”” (O'Connell, *supra*, 141 Cal.App.4th at p. 1463.)

Analysis

Plaintiff

moves for a preliminary injunction to stop and restrain “Defendants['] wholesale theft and use of Plaintiff’s valuable intellectual property rights, including Plaintiff’s common-law trade dress and trademarks.[1]

Likelihood

of Prevailing on the Merits

“An

injunction may be granted in the following cases: (1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually.” (Code Civ. Proc., § 526, subd. (a)(1).)

Plaintiff

argues that it will likely prevail on its eight causes of action. However, the Court is not persuaded by Plaintiff’s claim. Plaintiff grouped its causes of action into three groups: (1) breach of contract; (2) infringement of trade dress, trademarks, and unfair business practices; and fraudulent concealment. As a preliminary matter, Plaintiff does not address the following causes of action: (5) conversion; (6) civil theft per Penal Code section 496; (7) internal interference with prospective economic advantage; and (8) constructive trust and restitution. The burden is on Plaintiff to show that it will likely prevail on the merits of its action. (See O'Connell, *supra*, 141 Cal.App.4th at p. 1481.) Here, Plaintiff has not addressed its fifth through eighth causes of action.

Moreover, “the general purpose of such an injunction is the preservation of the status quo until a final determination of the merits of the action.” (Continental Baking Co. v. Katz (1968) 68 Cal.2d 512, 527.) A mandatory injunction that will grant the moving party “all of the injunctive relief requested in its complaint and to accomplish the main purpose of the action in advance of a trial on the merits. Rarely will such a mandatory injunction issue.” (Paramount Pictures Corp. v. Davis (1964) 228 Cal.App.2d 827, 838–839.) Here, Plaintiff’s Proposed Order makes the following request for relief.

IT IS HEREBY ORDERED that Defendants Michael Garrison, Zachary Powers, Mint Management LLC, and Crafton Select LLC (“Defendants”) pursuant to Code of Civil Procedure, § 525 et seq. are hereby enjoined and restrained from:

(i) the manufacture, sale, distribution, transfer, or promotion of any product

bearing the word mark Quickies, the use of the color red, and the Blankwoods’

common-law trade dress, which consists of: the word Quickies, in a white

cursive script, with an underscoring white line widening to form a cigarette

paper “Quickies” cone, twisted at the end, against a red background (the

“Quickies trade dress” See, e.g. Exhibit “A” attached hereto as reference),

(collectively the “Blankwoods’ intellectual property”), and particularly as

applied to any packaging, or any designs or illustrations thereof, including any

Grasshoppers branded products or

materials used for marketing and sales

which utilize Blankwoods' intellectual property;

(ii) the possession and/or control of any item, including packaging or marketing

materials, that bears the word mark Quickies, the trade dress or the color red,

including those used in conjunction with any Grasshoppers branding,

marketing or sales;

(iii) approving or causing to approve consigns for goods bearing the word mark

Quickies, the trade dress or the color red, including those used in conjunction

with the Grasshoppers branding;

(iv) collecting payment for or from any sales of goods bearing the word mark

Quickies, the trade dress or the color red, including those payments owed or

received in conjunction with the Grasshoppers branding and its use of the

Blankwoods' intellectual property;

(v) from collecting for or on behalf of any Defendant, and each of them, any past,

current, or future gross revenue to be received through or from the sale of

items bearing the word mark Quickies,
the trade dress or the color red,

including those used conjunction with
the Grasshoppers brand, and which

Defendants are ordered to place said
revenue in an escrow account designated

by Plaintiff, pending an accounting
and/or trial, including any accounts

payable due and owing to Defendants, or
any of them, from any customer,

merchant, other purchaser or other
business associate or subsidiary or

independent company under Defendants
ownership or control;

(vi) the use of the word mark Quickies,
the trade dress or the color red, including

those used in conjunction with the
Grasshoppers brand, in conjunction with

the sale or promotion of goods within
California;

(vii) further unlawful and unlicensed
possession of Blankwoods' digital assets,

identified minimally as "a" through "c"
below, ("Blankwoods' Digital

Assets"), and the Other Digital Assets,
identified minimally as "d" through

“f” below and infringing upon or
derivative of Blankwoods’ intellectual

property, inclusive of, but not limited
to, domains and social media accounts

such as:

a. the domain “quickiesbrand.com;”

b. the domain “quickiesprerolls.com;”

c. the Instagram account
“quickieprerolls;”

d. utilizing the domains
“grasshoppers.shop” and “groasshoppers

brand.com” as destination domains from any
domain associated with the Quickies Mark or trade dress;

e. utilizing any Instagram account in
association with the word mark Quickies, the trade dress or color red in
association with any social media account, inclusive of the Instagrams accounts
bearing the unique identifiers: i. officialgrasshopperlosangeles; ii.
official_grasshopper; iii. grasshopper_la; and iv. grasshoppersbrand_official;
and f. any other digital asset related to the Quickies or Grasshoppers brand;
and

(viii) the causing of any association
between Defendants and the word mark Quickies, the corresponding trade dress or
the color red, by which Defendants indicate, or cause the public to perceive,
that Defendants’ or any one of them are the owners of word mark Quickies or
other Blankwoods’ intellectual property; or any use of such intellectual
property as a source identifier of any of Defendants’ goods or services.

As Blankwoods has also presented facts
clearly establishing its rights over the Digital Assets, the Court further
enjoins Defendants’ infringing conduct and orders Defendants, and each of them,
their agents, servants, employees, representatives, and all person acting in

concern or participation with them to:

(i) deliver to Blankwoods access to the Digital Assets using the word mark Quickies, the trade dress or the color red, including those used in conjunction with the Grasshoppers brand, by providing Blankwoods with the respective login credentials; and

a. institute Blankwoods as the registered owner of any domains bearing the Quickies trademark or other intellectual property, including, but not limited to, “quickiesbrand.com,” “quickiesprerolls.com,” and the Instagram account “quickieprerolls.”

(Plaintiff’s Proposed Order, 2:9-4:27.)

What Plaintiff is seeking in this motion is the injunctive relief it seeks in its Complaint, not to maintain the status quo.

The Complaint alleges that Plaintiff is the “sole owner of intellectual property concerning the Quickies™ trademark, inclusive of the background color red with white fonts in conjunction with its brand. Its Class 25 registered wordmark covers articles of clothing, as specified above. Said marks are valid and protectable.” (Compl., ¶ 64 (emphasis added).) But Defendants’ evidence as to its packaging and marketing materials does not use the color red. (Garrison Decl., ¶¶ 11, 17-20; Ex. B-C.) Whether Defendants infringed or did not infringe on the trademark is not a determination the Court can make at this time, but what is before the Court weighs in favor of Defendants, not Plaintiff. There is a question of who holds the Quickies trademark. Defendants contend that the trademark holder is Canna Culture Corporation. (See Trojan Decl., ¶ 2; Ex. 1; Garrison Decl., Ex. 1.)

Thus, the Court finds that Plaintiff did not meet its burden for the likelihood of prevailing on the merits. Because Plaintiff has not met its burden as to the first element, the Court will not address the second element regarding the balance of the harms. (See O’Connell, supra, 141 Cal.App.4th at p. 1467.)

Therefore, the Court denies Plaintiff’s motion for a preliminary injunction.

Conclusion

Plaintiff

Blankwoods LLC's motion for preliminary injunction is denied.

[1] However,

the Plaintiff's Proposed Order is far more expansive than the motion. The Court notes that Plaintiff's Proposed Order seeks more than to maintain the status quo of the parties until the resolution of the case.